

This is a fictional sample document created for software testing. It is not a real government notice, and all names, companies, addresses, numbers, and dates are invented.

U.S. Department of Homeland Security
U.S. Citizenship and Immigration Services
Northlake Service Center
2101 Fairhaven Commerce Way
Northlake, IL 60301-0284

REQUEST FOR EVIDENCE

Notice Type	Request for Evidence
Receipt Number	NLS2591250417
Form	I-129, Petition for a Nonimmigrant Worker
Classification Requested	L-1A, Intracompany Transferee — Manager or Executive
Received Date	April 2, 2025
Notice Date	August 4, 2025
Petitioner	Helvern Analytics USA, Inc.
Beneficiary	MONTEIRO, Rafael Duarte
Beneficiary DOB	September 14, 1987
Page Count	4
RESPOND BY	October 27, 2025

PRIYA N. RAGHAVAN, ESQ.
HALLORAN & VESTRY IMMIGRATION LAW GROUP PLLC
1220 KESTREL STREET, SUITE 900
AUSTIN, TX 78701

IMPORTANT — READ THIS NOTICE CAREFULLY

We have reviewed the petition you filed on behalf of the above-named beneficiary and the evidence submitted with it. The evidence of record is not sufficient for us to determine eligibility for the classification sought. Before we can continue processing this petition, you must submit the evidence described below.

Your response must be received in this office on or before October 27, 2025. We cannot grant an extension of this deadline. If we do not receive a response by that date, we will make a decision on the record as it now stands, which may result in denial of the petition. Submit all requested evidence together in a single response; if you send evidence in more than one mailing, we may decide the petition before the later mailing reaches us.

Place the enclosed blue response cover sheet on top of your response so that it is routed to the correct officer.

THE LAW

Section 101(a)(15)(L) of the Immigration and Nationality Act (INA) provides for the classification of a beneficiary who, within the three years preceding the filing of the petition, has been employed abroad continuously for one year by a firm or corporation, and who seeks to enter the United States to continue rendering services to the same employer, or to a parent, branch, affiliate, or subsidiary of that employer, in a capacity that is managerial, executive, or involves specialized knowledge.

The regulation at 8 CFR 214.2(l) further requires the petitioner to establish that:

- a qualifying relationship exists between the foreign employer and the United States employer, and that both are or will be doing business for the duration of the beneficiary's requested stay;
- the beneficiary was employed abroad for one continuous year in the three years preceding the filing of the petition in a managerial, executive, or specialized-knowledge capacity; and
- the beneficiary will be employed in the United States in a managerial or executive capacity.

"Managerial capacity" means an assignment in which the beneficiary primarily manages the organization, or a department, subdivision, function, or component of the organization; supervises and controls the work of other supervisory, professional, or managerial employees, or manages an essential function; has authority over personnel actions, or, if no employees are directly supervised, functions at a senior level within the organization; and exercises discretion over the day-to-day operations of the activity or function for which the beneficiary has authority. A first-line supervisor is not considered to be acting in a managerial capacity merely by virtue of supervisory duties unless the employees supervised are professional.

The burden of proof is on the petitioner. Statements of counsel and unsupported assertions in an employer letter are not evidence and do not by themselves satisfy that burden.

EVIDENCE SUBMITTED WITH THE PETITION

The record currently contains, among other things, a letter from counsel dated March 28, 2025; a support letter from the petitioner dated March 21, 2025; a support letter from Helvern Sistemas Ltda. dated March 18, 2025; organizational charts for both entities; a position description for the offered position; and an exhibit binder of corporate records.

REQUESTED EVIDENCE

1. The beneficiary's employment in the United States in a managerial capacity.

The record describes the offered position of Director of Delivery Operations, Americas, but the description must be measured against what the beneficiary will actually do day to day. Submit:

- a. A detailed statement, on company letterhead and signed by an authorized official, describing the beneficiary's proposed duties, with the approximate percentage of time to be

devoted to each duty over a normal work week;

b. The names, job titles, educational levels, and a summary of the duties of each employee the beneficiary will directly supervise, together with the number of employees reporting to each of them;

c. An explanation of the beneficiary's authority to hire, terminate, promote, and set compensation, or a description of the essential function the beneficiary will manage if no employees are directly supervised; and

d. An organizational chart of the United States entity showing the beneficiary's position, the positions above and below it, and the names of the persons occupying those positions.

2. The qualifying relationship between the United States petitioner and the foreign employer.

The petitioner asserts that it is a wholly owned subsidiary of Helvern Sistemas Ltda. Ownership and control must be documented, not asserted. Submit evidence such as the petitioner's articles of incorporation and any amendments; all issued stock certificates; the complete stock ledger or transfer book; minutes of the meeting at which the shares were authorized and issued; and documentary proof of the consideration actually paid for the shares, such as a wire transfer confirmation or bank statement showing the funds moving from the foreign entity to the petitioner.

3. The beneficiary's one continuous year of qualifying employment abroad.

This petition was filed on April 2, 2025. The beneficiary must therefore have been employed abroad by a qualifying organization for one continuous year at some point between April 2, 2022 and April 2, 2025, in a managerial, executive, or specialized-knowledge capacity. The current record describes the beneficiary's foreign duties only in a letter from the foreign employer. Submit independent, contemporaneous evidence of that employment, including:

a. Payroll records, pay slips, wage statements, or foreign tax withholding records covering the claimed period of employment abroad;

b. The beneficiary's employment contract, appointment letter, or personnel file extract showing job title and dates of service;

c. A statement identifying, month by month, every period during the three years preceding filing in which the beneficiary was physically present in the United States, together with copies of Form I-94 arrival/departure records and the passport pages bearing the corresponding entry and exit stamps. Our records indicate the beneficiary was admitted to the United States on May 15, 2023 and departed on November 20, 2023. The petition materials refer to the beneficiary leading a workshop series in Austin during 2023 but do not reconcile that activity with the claimed continuous employment abroad.

4. That both entities are doing business.

"Doing business" means the regular, systematic, and continuous provision of goods or services, and does not include the mere presence of an agent or office. Submit evidence that the petitioner and the foreign employer have each been doing business for the previous year, such as annual financial statements or tax filings, executed client contracts, and invoices issued.

5. The petitioner's physical premises in the United States.

The record does not establish where in the United States the beneficiary will physically work or that the petitioner occupies premises sufficient for the operation described. Submit a copy of the signed and executed lease or deed for each United States location at which the beneficiary will work; a floor plan or statement of the usable square footage; and dated photographs of the interior and exterior of the premises, including any signage bearing the petitioner's name. If the beneficiary will work at a location other than the address on Form I-129, identify that location and provide the same documentation for it.

6. Corroborating personnel evidence for the beneficiary's subordinates.

The petitioner's staffing claims must be supported by evidence that the subordinate positions are in fact filled by paid employees with the credentials described. For each of the beneficiary's direct reports, submit the most recent Form W-2 or two consecutive pay statements; a copy of the diploma, transcript, or credential evaluation supporting the stated educational level; and, where the position is claimed to be professional, evidence that a bachelor's degree or higher is the normal minimum requirement for entry into the occupation.

HOW TO RESPOND

Submit all of the requested evidence at one time, with the blue cover sheet on top, to:

USCIS Northlake Service Center
Attn: L Adjudications, RFE Response Unit
2101 Fairhaven Commerce Way
Northlake, IL 60301-0284

Do not submit original documents unless we specifically ask for them; we will not return them. Any document in a language other than English must be accompanied by a full English translation and a certification from the translator attesting to the translator's competence and to the completeness and accuracy of the translation.

If you have questions, call the USCIS Contact Center at the number printed on your receipt notice and have receipt number NLS2591250417 available.

Sincerely,

M. Halvorsen
Adjudications Officer, Officer ID NLS-4417
Northlake Service Center

Enclosure: blue response cover sheet